

HOUSE No. 1950

The Commonwealth of Massachusetts

PRESENTED BY:

David Allen Robertson

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to voluntary personal representatives.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>David Allen Robertson</i>	<i>19th Middlesex</i>	<i>1/16/2025</i>

HOUSE No. 1950

By Representative Robertson of Tewksbury, a petition (accompanied by bill, House, No. 1950) of David Allen Robertson relative to voluntary personal representatives. The Judiciary.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to voluntary personal representatives.

Whereas, The deferred operation of this act would tend to defeat its purpose, which is to Expedite the settlement of interstate estate settlements., therefore it is hereby declared to be an emergency law, necessary for the immediate preservation of the public convenience.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 The fourth paragraph of section 3-1201 of part 12 of article III of chapter 190B of the
2 General Laws, as appearing in the 2022 Official Edition, is hereby amended by striking out the
3 first sentence and inserting in place thereof the following 2 sentences:-

4
5 Upon the presentation of a copy of such a statement duly attested by the register,
6 the tender of a proper receipt in writing and the surrender of any policy, passbook, note,
7 certificate or other evidentiary instrument, a voluntary personal representative may, as the legal
8 representative of the deceased and his estate: (i) receive payment of any debt or obligation in the
9 nature of a debt, (ii) receive delivery of any chattel or asset scheduled in such statement or (iii)
10 open a bank account for the estate of the decedent. A bank shall accept a copy of such a

- 11 statement duly attested by the register as acceptable documentation to open a bank account for
- 12 the estate of the decedent and the appointment of the voluntary personal representative as the
- 13 personal representative to the bank account.